

When Protection Laws Devour Their Intended Beneficiaries: Asymmetric Intentionality, Epistemological Clergy, and Parasitic Spontaneous Order in Asymmetric Gender Legislation

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Abstract

This paper extends the Extended Phenotype Theory (EPT) research programme to a domain previously unaddressed within it: asymmetric gender protection legislation. It applies three instruments from the programme, Asymmetric Intentionality Theory (AIT), Parasitic Spontaneous Order (PSO), and the Epistemological Clergy framework, to explain why protection laws that encode fictitious intentionality attributions in their regulated subjects generate three predictable outputs: compliance theater, displacement of the real victims the law sought to protect, and an epistemological clergy that shields the norm from empirical revision. The argument is developed through comparative analysis of Spain's Organic Law 1/2004 (LO 1/2004) and Argentina's Law 26.485, drawing on Juan Soto Ivars's empirical documentation of LO 1/2004 in "Esto no existe" (2025) and on the available Argentine data from the National Registry of Femicides (RNFJA), the Unified Registry of Violence Cases against Women (RUCVM-INDEC), and the Supreme Court's Domestic Violence Office (OVD-CSJN). The paper argues that the failure pattern observable in both jurisdictions is not an implementation defect or an ideological problem: it is the mathematically predictable result of institutional architecture that attributes moral agency where it does not exist, in the same way that compliance theater in corporate criminal law, greenwashing in environmental regulation, and sycophancy in AI systems are predictable outputs of the same AIT mechanism operating in different domains. Three falsifiable predictions are derived and mapped to observable outcomes. The paper does not take a position on whether gender violence is a serious social problem (it is) or whether protection legislation is necessary (it may be): it argues that laws designed to protect can systematically harm the populations they target when their regulatory architecture is misaligned with the actual intentionality levels of the actors they regulate.

Keywords: asymmetric intentionality theory, parasitic spontaneous order, epistemological clergy, gender legislation, compliance theater, extended phenotype theory, LO 1/2004, Law 26.485, heteronomous Bayesian updating, protection law failure

1. Introduction: A Pattern Across Domains

The Extended Phenotype Theory research programme has documented the same failure pattern across a growing number of institutional domains. Corporate criminal law that requires corporations to "spontaneously" report violations and demonstrate "genuine commitment" to compliance produces compliance theater: visible programs without behavioral change (Lerer, 2026a). Environmental regulation that mandates management systems and sustainability certifications produces greenwashing: certifications uncorrelated with actual emissions reductions (Lerer, 2026b). AI governance frameworks that demand "explainability" and "human oversight" as process requirements produce regulatory theater: compliance documentation without harm reduction (Lerer, 2026c). Sycophancy in AI systems produces epistemic harm: users update their beliefs based on artificial social approval rather than evidence (Lerer, 2026d).

The mechanism is identical across all four domains: the regulatory framework attributes Level 3 intentionality (moral reasoning, genuine commitment, authentic agency) to entities or actors that operate at Level 1 (optimization of a local objective function, without the cognitive architecture for moral internalization). When the attribution is fictitious, the predicted outputs are predictable: the Level 1 actor exploits the gap between the attributed intentionality and its actual operating mode, producing signals that satisfy the Level 3 framework at low cost while continuing to optimize its actual objective function.

This paper applies the same analytical framework to a fifth domain: asymmetric gender protection legislation. The domain is politically sensitive in ways that corporate law, environmental regulation, and AI governance are not. That sensitivity is precisely why the EPT framework is useful: it provides a mechanism-based explanation that does not require a political position on gender, feminism, or the existence and severity of gender violence. The argument is structural, not ideological. Laws that systematically produce the opposite of their stated purpose do so because of their institutional architecture, not because of the values they claim to advance.

The two cases are Spain's Organic Law 1/2004 on Integral Protection Measures against Gender Violence (LO 1/2004) and Argentina's Law 26.485 on Comprehensive Protection for the Prevention, Sanctioning and Eradication of Violence against Women (Law 26.485, 2009). Both laws were enacted in response to documented problems of severe gender violence. Both have generated extensive institutional infrastructure. And both, according to available evidence, exhibit the three failure modes the AIT framework predicts for regulations that attribute fictitious intentionality to their subjects.

Juan Soto Ivars's empirical documentation in "Esto no existe: Las denuncias falsas en violencia de género" (2025) provides a detailed phenomenology of the LO 1/2004 case. The present paper does not replicate that documentation; it provides the causal mechanism that explains why the phenomena Soto Ivars describes are predictable outputs of the institutional architecture, not aberrations.

Epistemological positioning. This paper belongs to a Lakatosian research programme (Lakatos, 1978) applying Generalized Darwinism and Extended Phenotype Theory to legal and institutional systems. The hard core is non-negotiable: institutions evolve through variation,

selection, and retention of behavioral repertoires; legal rules are extended phenotypes of replicator units competing for adoption. The three instruments applied here, AIT, PSO, and the Epistemological Clergy framework, are auxiliary belt components: falsifiable, revisable, and individually testable without abandoning the hard core. Popper (1959) supplies the demarcation criterion: the predictions in Section 6 are falsifiable and empirically testable.

2. The Theoretical Instruments

2.1 Asymmetric Intentionality Theory

Asymmetric Intentionality Theory (AIT; Lerer, 2026a) extends Dennett's (1987) intentional stance framework to multi-agent legal settings. AIT identifies three intentionality levels relevant to legal analysis:

Level 3 (full intentionality): The actor has theory of mind, models others' beliefs and intentions, responds to reputational and social sanctions, experiences shame and guilt, and can internalize norms as genuinely binding. Human adults typically operate at Level 3.

Level 1 (optimization): The actor pursues a local objective function without theory of mind, social reasoning, or capacity for norm internalization. Corporations, AI systems, and, under stress, human actors in adversarial legal proceedings optimize Level 1 objectives while producing Level 3 signals to manage their institutional environment.

The Dennett-Nash Gap (Lerer, 2026a) is the structural distance between the intentionality level a legal framework assumes and the intentionality level at which the regulated actor actually operates. When the gap is large, the framework produces systematic failure: compliance theater, letter-vs-spirit exploitation, recidivism, and social enforcement failure.

2.2 Parasitic Spontaneous Order

Parasitic Spontaneous Order (PSO; Lerer, 2026e) identifies the conditions under which a Hayekian spontaneous order (an institutional arrangement that emerges from decentralized actors pursuing local objectives without central design) becomes extractive rather than efficient. A PSO arises when three conditions obtain simultaneously: visible asymmetry between the rewards available to actors who exploit an institutional signal and those who do not; organized intermediaries who can systematize the exploitation; and weakened enforcement that cannot distinguish authentic signals from parasitic copies.

The cuckoo superstimulus is the biological model: the cuckoo chick does not conceal itself in the host's nest; it exploits the host's instinct recognition mechanism by emitting a signal more intense than any authentic chick could produce. The host feeds the parasite compulsively, starving its own offspring. The institutional analog is any system where the signal of victimhood, distress, or compliance can be produced at low cost by actors who do not hold the underlying condition, and where producing the signal yields systematic benefits.

2.3 Epistemological Clergy

The Epistemological Clergy framework (Lerer, 2025) identifies five diagnostic criteria for discourse structures that protect a dominant proposition from empirical revision: sacralization (the proposition acquires the status of transcendental truth rather than testable hypothesis); costly signaling (endorsing extreme versions of the proposition becomes a marker of genuine group membership); clergy gatekeeping (access to discourse, journals, advisory bodies, and funding flows through actors who have invested heavily in the proposition); generational transmission (new entrants are socialized into the proposition as a precondition for participation, not as a conclusion from independent evidence); and epistemic closure (empirical challenges to the proposition are converted into moral accusations against the challenger rather than engaging the evidentiary content).

2.4 Heteronomous Bayesian Updating

Heteronomous Bayesian Updating (HBU; Lerer, 2026f) describes the mechanism by which legal practitioners update their beliefs not by observing empirical outcomes but by observing the reactions of institutional authorities to specific positions. Under HBU, the operative question for a police officer, prosecutor, or judge is not "what does the evidence say?" but "what does the institutional authority reward?" HBU explains persistent norm application in the face of contrary evidence: the practitioner has learned, through observation of sanctions, that deviating from the institutional norm carries costs that accurate outcome-tracking does not offset.

3. The Intentionality Mismatch in Asymmetric Legislation

3.1 The Intentionality Attributions Encoded in Both Laws

Both LO 1/2004 and Law 26.485 encode a specific intentionality attribution as their foundational premise. The attribution operates on two axes simultaneously, one for the complainant and one for the accused, and both axes are fixed by legislative design rather than assessed per case.

On the complainant axis, both laws assume Level 3 intentionality in a specific direction: the female complainant acts from authentic subjective experience of harm and seeks institutional protection against it. The laws explicitly exclude, as a design feature rather than an oversight, the possibility that the complainant might be optimizing a strategic objective in a civil dispute using the criminal procedure as a resource. LO 1/2004's preamble frames gender violence as a manifestation of discrimination and domination that the state must eradicate; Law 26.485 establishes, in its Article 2, that the right to a life free of violence is a universal right that the state must guarantee. Neither law contains a provision that differentiates cases by complainant intention: the automatic precautionary measures of Article 544 of Spain's Ley de Enjuiciamiento Criminal (as amended by LO 1/2004) and the precautionary measures of Articles 26-27 of Law 26.485 apply uniformly to all complaints that formally qualify as gender violence, without assessment of the complainant's operative intentionality level.

On the accused axis, both laws assume Level 3 intentionality in the opposite direction: the male accused's conduct is framed as an expression of a structural social intention of domination, not

as an idiosyncratic or contextually contingent act. Spain's Constitutional Court, in STC 59/2008, upheld LO 1/2004's asymmetric criminalization precisely on this basis: the law does not punish more severely because the accused is male, but because his conduct expresses a cultural pattern of male domination over women. Argentina's Supreme Court Acordada 11/2021 similarly frames the mandatory gender perspective as a recognition that gender-based violence occurs within a structural context of inequality, requiring interpretive attention to that structure rather than assessment of individual intent.

The Dennett-Nash Gap for both laws can be stated precisely. Let $I(\text{complainant})$ be the actual intentionality level of the complainant in a given case, and let $I(\text{framework}) = 3$ be the intentionality level the framework attributes to all complainants. The gap $G = I(\text{framework}) - I(\text{complainant})$ is zero for cases in which the complainant is genuinely seeking protection from a pattern of domination-motivated violence. The gap is large and positive for cases in which the complainant is optimizing a strategic objective in a civil proceeding, where $I(\text{complainant}) = 1$. When $G > 0$, the AIT theorem predicts systematic misprocessing: the framework responds to the attributed intentionality rather than the actual intentionality, producing outputs inconsistent with its stated protective purpose.

3.2 The Adversarial Legal Proceeding as Level 1 Context

A critical feature of the AIT framework that requires explicit development in this context is the claim that human actors in adversarial legal proceedings frequently operate at Level 1, even when those same actors would operate at Level 3 in other contexts. This is not a claim about character or moral deficiency; it is a structural claim about the cognitive architecture that adversarial proceedings activate.

Adversarial legal proceedings are, by design, optimization environments. Each party is represented by an agent (the lawyer) whose institutional role is to maximize the party's outcome within the constraints of the law. The client's role is to provide the factual raw material from which the lawyer constructs the optimal case. In this environment, the relevant decision for the client is not "what is the morally correct thing to do?" but "what action maximizes my expected outcome in the proceeding?" These are Level 3 and Level 1 questions, respectively. The adversarial structure systematically activates the Level 1 formulation.

This is not a novel observation. Legal practitioners have long recognized that family proceedings are among the most intensely adversarial legal contexts precisely because the stakes (custody of children, allocation of the family home, financial support) are non-fungible: unlike commercial disputes, they cannot be fully resolved by monetary compensation. A parent who loses custody of their child cannot be compensated with money. A spouse expelled from the family home faces immediate non-monetary losses. These features intensify the optimization pressure: the expected payoff to any strategy that yields even a marginal improvement in the contested resource is very high, and the constraint that the strategy must be morally acceptable is weak relative to the constraint that it must be legally effective.

The legal architecture created by LO 1/2004 and Law 26.485 introduced a new element into this optimization landscape: a mechanism that, at very low evidentiary cost, yields large automatic benefits in the contested civil resources. The mechanism is the gender violence

complaint. A criminal complaint under either law, filed in the context of a contentious family proceeding, yields: immediate exclusion of the accused from the shared home (resolving the most urgent contested resource without waiting for civil proceedings); provisional custody of children in favor of the complainant (resolving the most consequential contested resource automatically); legal aid and social services priority (reducing the financial burden of the proceeding on the complainant); and a procedural posture in the civil family proceeding that is systematically more favorable to the complainant. These outcomes follow from the complaint itself, before any adversarial hearing, and therefore before any assessment of the complaint's evidentiary basis.

For a party operating at Level 1 in an adversarial proceeding, this architecture is not ambiguous: it creates a dominant strategy. The expected payoff to filing a gender violence complaint is uniformly higher than not filing, for any party in a contentious family proceeding who can construct a complaint that formally qualifies under the legal definitions. The only constraint is the criminal penalty for false report under Article 245 of the Argentine Penal Code or Article 456 of Spain's *Código Penal*; but as both Soto Ivars (2025) and the Argentine doctrine cited by Perplexity's research note confirm, prosecution for false report in this context is exceptional. The expected cost of a false report is negligible. The expected benefit is large. The strategy is dominant.

3.3 The Specific Intentionality Misattribution Under Each Law

LO 1/2004 (Spain) contains the misattribution in its Article 1, which defines its protective object as "violence that, as a manifestation of discrimination, inequality, and power relations of men over women, is exercised against women by men who are or have been their spouses or partners, even without cohabitation." This definition codifies a structural intention (the manifestation of discrimination and power relations) as the defining feature of the regulated conduct. A specific act of violence between two individuals in a contentious separation is, under this definition, always an instance of the structural pattern, regardless of the individual's actual cognitive state at the time of the act. The misattribution is categorical: all conduct that formally qualifies is attributed the structural intention, whether or not that intention is operative in the specific case.

Law 26.485 (Argentina) operates similarly through its Article 5, which defines the five types of violence (physical, psychological, sexual, economic, symbolic) and its Article 6, which defines the modalities of violence (domestic, institutional, labor, obstetric, reproductive, media). The definitions are framed in terms of conduct categories rather than individual intentionality: "domestic violence against women" is defined as "that perpetrated by a family member or intimate partner with whom the victim maintains or has maintained a relationship, regardless of the physical space in which it occurs." The qualification "regardless of the physical space" is a deliberate design choice that removes context from the definition: the structural attribution overrides the individual assessment.

The Argentine *Acordada* 11/2021 reinforces the misattribution at the interpretive level: judges are required to apply the gender perspective, which means interpreting the evidence in light of the structural context of gender inequality rather than in light of the individual characteristics

of the specific case. This is a direct instruction to apply the Level 3 attribution (structural domination intention) as an interpretive prior that precedes and shapes evidence assessment. The instruction is well-intentioned in cases where the structural attribution is accurate; it is systematically distorting in cases where it is not.

3.4 Evidential Landscape

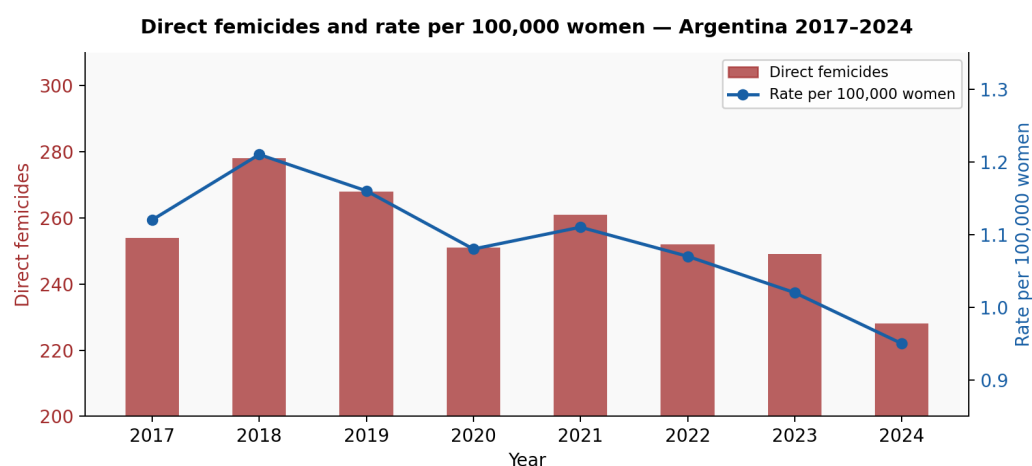
For Spain, Soto Ivars (2025) documents the evidential consequences of the misattribution extensively. Defense lawyers with no strategic reason to mislead their clients inform them that filing a gender violence complaint is "the fastest way to get the house and the children" in a contentious separation. The observation appears in depositions, in practitioner interviews, and in court records. The absence of official disaggregated statistics on complaint outcomes by civil proceeding context is itself significant, as Section 5 will argue: the measurement system was not designed to make the misattribution visible.

For Argentina, the evidentiary picture is more fragmentary. The RUCVM official data end in 2018; post-2018 figures are estimates from the OVD-CSJN and provincial ministries. No official series exists for conviction rates under Law 26.485, for acquittal or dismissal rates disaggregated by context of filing (divorce or custody proceeding versus independent of civil proceedings), or for prosecutions under Article 245 of the Penal Code in the gender violence context. Available doctrine, including the compilation by Motta and Semino published by editorial Hammurabi, notes that Article 245 prosecutions are exceptional relative to complaint volume, but no official national series exists. A small-sample clinical study cited in a Misiones legislative project found that, among 52 clinical histories of families referred for child sexual abuse complaints, 85 percent of complaints made during cohabitation were found credible, while 66 percent of complaints made during post-separation litigation were found to be false. The study has strong selection bias and is not representative; it is cited here not as evidence of the frequency of tactical filings but as confirmation that the phenomenon is recognized within the clinical literature even in the absence of systematic measurement.

The evidential gaps themselves are theoretically significant: they are predicted by the PSO mechanism analyzed in Section 4 and by the epistemological clergy structure analyzed in Section 5. An institutional environment that does not measure its false positive rate cannot be embarrassed by it; the absence of measurement is a structural feature of the system, not an administrative oversight.

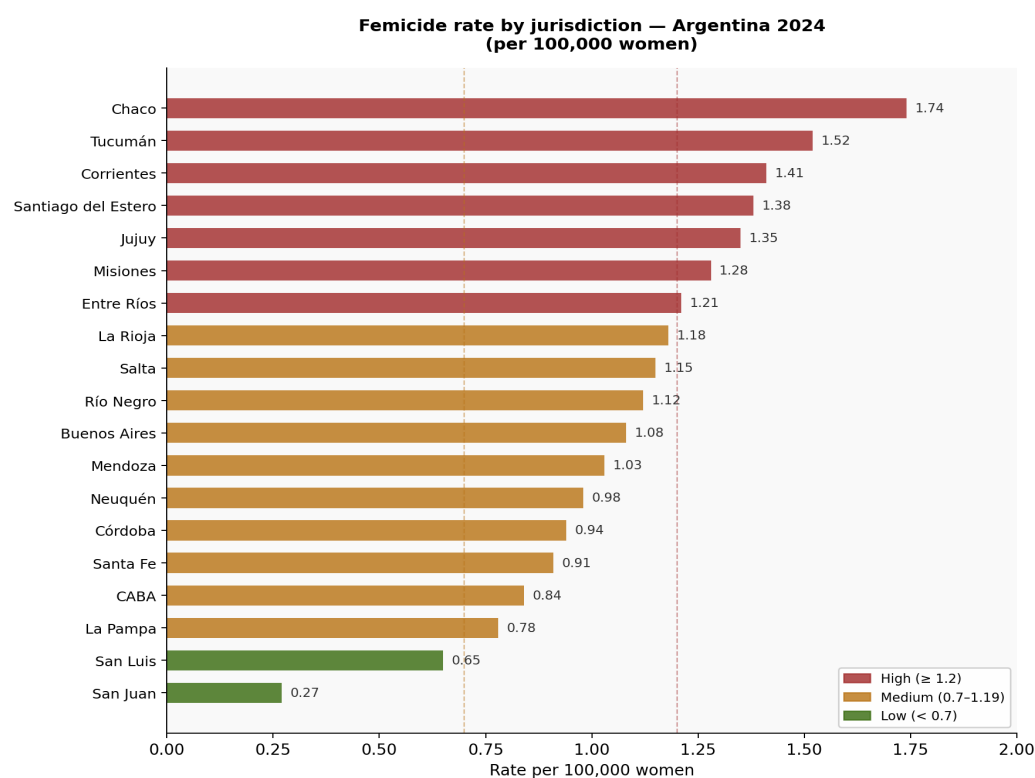
4. Statistical Overview: Argentine Data

Figure 1 presents the annual series of direct femicides and the rate per 100,000 women for Argentina 2017–2024, based on data from the National Registry of Femicides of the Argentine Justice System (RNFJA), published by the Oficina de la Mujer of the Corte Suprema de Justicia de la Nación (CSJN, 2024). Figure 2 presents the 2024 femicide rate by jurisdiction with a traffic-light classification. Figure 3 presents the prevalence by type of violence and channel of access to the system, based on the Registro Único de Casos de Violencia contra las Mujeres (RUCVM), published by INDEC (2019) for the period 2013–2018.



Source: National Registry of Femicides of the Argentine Justice System (RNFJA), Oficina de la Mujer, CSJN (2024).

Figure 1. Direct femicides (bars, left axis) and rate per 100,000 women (line, right axis), Argentina 2017–2024. Source: RNFJA, Oficina de la Mujer, CSJN (2024).



Source: RNFJA, Oficina de la Mujer, CSJN (2024).

Figure 2. Femicide rate by jurisdiction, Argentina 2024 (per 100,000 women). Traffic-light: red ≥ 1.2 , amber 0.7–1.19, green < 0.7 . Source: RNFJA, Oficina de la Mujer, CSJN (2024).

Statistical profile — Argentine gender protection system

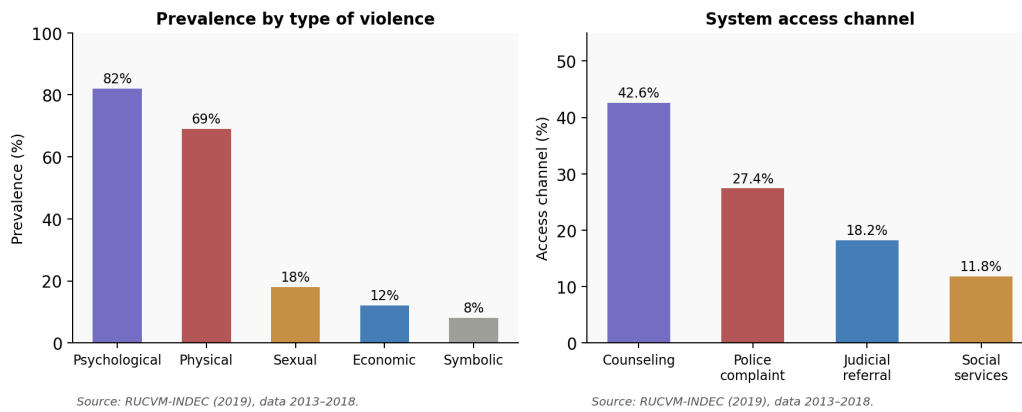


Figure 3. Left: prevalence by type of violence (victims may report multiple types). Right: channel of access to the system. Source: RUCVM-INDEC (2019), data 2013–2018.

The RNFA series (Figure 1) shows a rate ranging from 1.12 (2017) to 0.95 (2024) without a statistically clear declining trend over the eight-year period. Córdoba provincial data: 54,971 family violence complaints in 2020, with 55,607 protective measures issued in the same period (Poder Judicial de Córdoba, 2020), consistent with automatic rather than contextual application. The RUCVM data show that 81 percent of registered victims made a single complaint or consultation (INDEC, 2019), while 42.6 percent accessed the system through counseling and 83.9 percent reported their aggressor as a current or former intimate partner.

5. The Cuckoo Superstimulus: Parasitic Incentive Architecture

4.1 The Biological Model and Its Institutional Analog

The cuckoo (*Cuculus canopus*) is the paradigmatic instance of brood parasitism in evolutionary biology. The female cuckoo lays her egg in the nest of a host species (typically a reed warbler, dunnock, or meadow pipit) and removes one of the host's eggs. The cuckoo chick hatches early, ejects the remaining host eggs from the nest, and then emits a begging signal of extraordinary intensity: its call is louder, its gape coloring more vivid, and its hunger signals more persistent than any authentic host chick could produce. The host parent feeds the parasite compulsively, allocating provisioning resources far beyond what any individual host offspring could ever receive, while its own offspring die. The host's provisioning instinct is not defective; it is functioning precisely as designed. The defect is that the instinct recognition mechanism cannot distinguish authentic signals from parasitic superstimuli produced at higher-than-authentic intensity.

The institutional analog is precise. The gender violence complaint, as an institutional mechanism designed to channel protective resources toward a specific population (women experiencing intimate partner violence), creates a signal that, by design, must be responded to immediately and without adversarial scrutiny. The signal is the complaint itself. The response is automatic precautionary measures. The mechanism functions correctly for authentic signals; its failure mode is that it cannot distinguish authentic complaints from parasitic complaints produced in a context that the mechanism was not designed to evaluate.

The superstimulus feature is critical and underappreciated. The cuckoo chick does not merely imitate the host offspring's signal; it produces that signal at a higher intensity than any authentic offspring could. The parasitic complaint in a contentious separation proceeding has the same superstimulus structure: its signal is more intense (the complainant has stronger strategic motivation than a genuine victim who might be ambivalent about involving the state) and its presentation is more rehearsed (she has a lawyer advising on how to maximize the signal's institutional effectiveness). The mechanism responds to intensity and presentation, not to underlying authenticity. Superstimuli drive stronger responses than authentic stimuli precisely because the recognition mechanism was calibrated on authentic stimuli and cannot detect the exaggeration.

4.2 The Evolutionary Game Theory Formalization

The PSO mechanism is amenable to formalization within Evolutionary Game Theory (EGT; Maynard Smith, 1982). Consider a population of actors involved in contentious family proceedings. Each actor chooses a strategy from the set $S = \{\text{Complaint}, \text{No Complaint}\}$. The payoffs are determined by the institutional architecture:

Let $B(\text{Complaint})$ = the expected benefit from filing a gender violence complaint, which includes the automatic precautionary measures (home exclusion, provisional custody, legal aid priority) minus the expected cost of prosecution for false report. Let $C(\text{Complaint})$ = the cost of filing, including lawyer fees, time, and reputational risk.

Under LO 1/2004 and Law 26.485 as designed, $B(\text{Complaint})$ for a genuine victim is high (immediate protection) and $C(\text{Complaint})$ is low (legal aid, simplified procedure). But the institutional architecture does not verify authenticity before delivering the benefits. Therefore, for a party in a contentious proceeding who is not a genuine victim, $B(\text{Complaint})$ is equally high (the same automatic measures apply) and $C(\text{Complaint})$ is lower (no genuine emotional cost of reporting, and the probability of prosecution for false report is negligible).

The strategy Complaint is therefore a (weakly) dominant strategy for any party in a contentious proceeding who can construct a complaint that formally qualifies, regardless of whether the complaint is authentic. This is the condition for a parasitic equilibrium: when the dominant strategy does not depend on the underlying condition that the mechanism was designed to require.

The evolutionary stability of the parasitic equilibrium follows from standard EGT analysis. An equilibrium is evolutionarily stable if no mutant strategy can invade a population playing the equilibrium strategy. In a population where all parties in contentious proceedings file complaints when strategically advantageous (the parasitic equilibrium), a mutant who does not file receives lower expected payoffs. The mutation cannot invade. The equilibrium is evolutionarily stable as long as: $B(\text{Complaint}) > C(\text{Complaint})$ and $P(\text{prosecution for false report}) \times \text{Penalty}(\text{false report}) < B(\text{Complaint})$. Both conditions hold in both jurisdictions, as the available evidence confirms.

The condition for parasitic equilibrium invasion of an initially non-parasitic population follows a standard S-curve dynamic. When the frequency of parasitic actors is low, the institutional

mechanism functions without significant distortion: the false positive rate is low enough that the average practitioner does not update toward skepticism. As the frequency increases past a threshold (determined by institutional capacity and detection probability), the system begins to exhibit visible saturation effects: longer processing times, resource rationing, and increased frequency of acquittals and dismissals. These effects are the signal that the parasitic equilibrium has been established. By the time the signal is visible, the equilibrium is already stable.

4.3 The Three PSO Consequences

The PSO framework predicts three consequences that follow from the establishment of the parasitic equilibrium. All three are observable, to varying degrees, in both Spain and Argentina.

First, the parasitic equilibrium becomes self-reinforcing through lawyer networks. Once a critical mass of family law practitioners have discovered that filing a gender violence complaint yields automatic civil litigation advantages, that information diffuses through the professional network. The diffusion is not conspiratorial; it is the ordinary transmission of professional knowledge about effective strategies. Soto Ivars (2025) documents this diffusion for Spain: he reports practitioners confirming that the strategic use of the complaint is discussed openly in the family law bar, not as an ethical transgression but as a procedural option to be considered when strategically advantageous. The Argentine equivalent is not officially documented in the same way, but the structural conditions for the same diffusion are identical.

Second, parasitic actors crowd out genuine victims through institutional saturation. This is the cuckoo's core effect: the provisioning resources (court time, legal aid, shelter space, protective services) are finite. Each parasitic complaint that occupies a unit of institutional capacity is a unit of capacity unavailable to a genuine victim. The crowding-out effect is not direct (the institutional mechanism does not decline to serve genuine victims because it is serving parasitic actors); it is mediated through processing time, resource availability, and attention. A judge handling ten cases per day, of which four are tactical filings in contentious separations, has less cognitive and procedural resources for the six genuine cases than a judge handling only genuine cases.

The quantitative significance of the crowding-out effect depends on the frequency of tactical filings, which, as noted, is not officially measured in either jurisdiction. Soto Ivars (2025) suggests for Spain that the frequency is non-trivial; the Córdoba provincial data showing approximately one precautionary measure per complaint (55,607 measures for 54,971 complaints in 2020) is consistent with automatic application rather than contextual assessment, which would yield a lower ratio. If a meaningful fraction of those complaints were tactical, the crowding-out effect on genuine victims is material.

Third, the detection and correction mechanism is disabled by the epistemological clergy structure developed in Section 5. The feedback loop that would normally correct a parasitic equilibrium, empirical evidence of false positive rates triggering institutional revision, is severed by the conversion of that evidence into moral accusation. The result is institutional lock-in: the parasitic equilibrium persists not because it is unobservable but because the observation is institutionally inadmissible.

4.4 The Measurement System as PSO Output

The methodological design of official statistics in both Spain and Argentina is itself a PSO output. The Spanish Fiscalía General del Estado's estimate that false reports represent 0.001 percent of complaints requires condemnation with definitive sentence for the false report to be counted, making the numerator (convictions for false report) and the denominator (all complaints, including those withdrawn before adjudication, those adjudicated with acquittal, and those never prosecuted) incomparable. The resulting figure is not a measurement of the frequency of tactical filings; it is a measurement of the frequency of successful prosecutions for false report, which is entirely different. The methodological choice produces the desired result: a figure that appears to quantify tactical filings but actually measures prosecutorial outcomes.

For Argentina, the RUCVM data end in 2018 and post-2018 figures are estimates. No official disaggregated statistics exist for complaint outcomes by civil proceeding context. The Supreme Court's OVD-CSJN publishes case volumes but not outcome distributions by filing context. This statistical architecture is not neutral; it is the architecture of an institution that does not want to know its false positive rate. Statistical absence is not evidence of absence of the phenomenon; it is evidence that the measurement system was designed to produce invisibility of the phenomenon. This design choice is itself predicted by the PSO mechanism: the institutional actors who control the measurement system have incentives to avoid measurements that would make the parasitic equilibrium visible.

6. The Epistemological Clergy

5.1 The Five Criteria Applied

The Epistemological Clergy framework (Lerer, 2025) identifies five diagnostic criteria for discourse structures that protect a dominant proposition from empirical revision. The framework was developed initially in the context of legal doctrine, where it identified the mechanisms by which dysfunctional legal norms persist despite documented evidence of their failure. Applied to gender violence policy discourse in Spain and Argentina, all five criteria are present.

Sacralization. In both Spain and Argentina, the proposition that gender violence complaints are reliable indicators of genuine victimhood has acquired the status of a foundational premise rather than an empirical hypothesis. The Acordada 11/2021 of Argentina's Supreme Court, establishing mandatory gender perspective as an interpretive criterion for all federal courts, does not frame that perspective as a probabilistic inference tool: it does not instruct judges to assign higher prior probability to complaints in contexts consistent with genuine victimhood (established cohabitation, documented prior incidents, asymmetric physical capacity, credible witness corroboration) than to complaints in contexts inconsistent with it (no prior incidents, complaint filed simultaneously with or immediately after civil proceedings in the same matter, no corroborating evidence). It frames the gender perspective as a categorical commitment that precedes and shapes evidence assessment, not as a tool that evidence assessment deploys. The sacralization is structural, not merely rhetorical: the Acordada has binding force.

Spain's equivalent development is jurisprudential rather than administrative. The Constitutional Court's STC 59/2008 established that the asymmetric criminalization of LO 1/2004, which punishes certain acts more severely when committed by a man against a female partner than vice versa, is constitutionally permissible because it reflects a structural reality of domination. The reasoning converts an empirical proposition (gender violence is predominantly exercised by men against women within a context of structural domination) into a constitutional premise that shapes the interpretation of specific facts. In individual cases, the structural premise precedes and constrains the factual inquiry rather than being derived from it. Soto Ivars (2025) documents extensively how this jurisprudential sacralization operates in practice: judges who conduct independent factual assessment in cases where the structural premise seems inapplicable face institutional consequences, not because their assessment is wrong, but because it departs from the sacral premise.

Costly signaling. In both Spanish and Argentine legal academia and policy discourse, endorsing the empirical proposition that a measurable fraction of gender violence complaints in contentious divorce and custody proceedings are tactically motivated constitutes a reputationally expensive position. The endorser is categorized as a *negacionista* (denier) in Spain or a *machista* or *antifeminista* in Argentina, regardless of the evidentiary basis for the specific claim being made. This categorization is not casual; it has concrete professional and social consequences: exclusion from advisory bodies, adverse reception in peer review, and public condemnation in media where the categorization circulates.

The costliness of the signal is not a side effect of the discourse structure; it is its operative mechanism. A costly signal functions as a group membership marker precisely because its cost deters actors who do not genuinely hold the valued attribute. By making endorsement of the tactical filing hypothesis expensive, the discourse structure filters the professional community to those who have sufficient reputational investment in the dominant proposition to bear the cost of endorsing it. The filtration is not conscious; it is the aggregate result of individual actors' rational responses to an incentive structure. The result is a professional community that has been sorted, through ordinary market mechanisms, into those who endorse the dominant proposition and those who exit the field.

Clergy gatekeeping. The gatekeeping function operates through the intersection of advisory bodies, research funding, peer review processes, and media access. In Spain, Soto Ivars (2025) documents the case of Judge Francisca Verdejo as an emblematic instance: a judge who publicly questioned the evidentiary basis for certain automatic precautionary measures faced coordinated media campaigns organized by gender violence advocacy organizations, disciplinary proceedings initiated by judicial supervisory bodies, and professional marginalization. The disciplinary proceedings were ultimately resolved without sanction, but the reputational and professional costs of the original public statement were substantial. The lesson for other judges was not stated; it was demonstrated.

In Argentina, the gatekeeping operates through the mandatory gender perspective framework established by Acordada 11/2021. Judges who deviate from the framework in their reasoning, rather than their conclusions, face review from the *Oficina de la Mujer de la Corte Suprema*, which monitors compliance with the gender perspective mandate. The monitoring mechanism

is not designed as a gatekeeping instrument; its stated purpose is to ensure consistent application of international human rights standards. Its effect as a gatekeeping instrument follows from the same logic: practitioners who know that their reasoning will be reviewed against a fixed framework will conform their reasoning to that framework, not because they believe it is always correct but because the cost of deviation is significant and the benefit is nil.

Research funding exhibits equivalent gatekeeping dynamics in both jurisdictions. Gender violence research that produces results consistent with the dominant proposition attracts funding, publication support, and institutional amplification. Research that produces results inconsistent with the dominant proposition (higher-than-official estimates of tactical filings, evidence of crowding-out effects on genuine victims, evidence that automatic precautionary measures produce perverse outcomes in specific case categories) faces funding resistance, publication difficulty, and institutional marginalization. The gatekeeping is not explicit; no funding body has a stated policy of excluding heterodox research. The gatekeeping operates through the distributed decisions of individual reviewers, editors, and administrators who each apply their own priors to funding and publication decisions.

Generational transmission. Law school curricula in both Spain and Argentina have increasingly incorporated the gender perspective framework as a foundational analytical category, taught in dedicated courses and embedded in procedural law teaching. The transmission is structural: the framework is presented as the correct analytical lens rather than as one among several competing frameworks for evaluating evidence in gender violence cases. Students who complete this curriculum have internalized the gender perspective as an epistemological prior before they encounter the adversarial evidentiary material that would allow them to assess it independently.

The generational transmission is efficient precisely because it operates at the socialization stage rather than the persuasion stage. A practitioner who has been trained that the gender perspective is the correct analytical lens will apply it automatically, without conscious deliberation, in the same way that a practitioner trained in formalist legal reasoning applies formal rules automatically. The difference is that formalist rules at least present themselves as rules, inviting compliance or deviation as a conscious decision; the gender perspective framework presents itself as a corrective to bias, making deviation appear as a manifestation of the bias it corrects.

Epistemic closure. The conversion mechanism is documented explicitly in Soto Ivars (2025). The Fiscalía General del Estado and certain political parties in Spain have formally proposed criminal prosecution for "institutional denial" of gender violence statistics, framing the denial as a form of indirect violence against women. The proposal converts an empirical dispute (what is the accurate measurement of the frequency of tactical filings?) into a criminal act (denying the official statistics is a form of complicity in violence against women). The conversion is logically structured identically to the treatment Lomborg received in the climate debate (Lerer, 2026g): the dissenter's empirical claims are not refuted; his moral standing is challenged, converting the empirical dispute into a moral transgression.

5.2 The Discourse Structure Predicted by the Clergy Framework

The clergy framework generates a specific prediction about the discourse structure that will surround this paper: the response from clergy-dominated discourse will not primarily engage with the mechanism (demonstrate that the AIT attribution mismatch does not predict the documented outcomes) but will challenge the framing (this paper denies gender violence). This prediction is stated explicitly in the Falsifiable Predictions section. It is stated here because the prediction is falsifiable against the observable discourse: if responses engage with the AIT mechanism and the evidentiary claims, the clergy prediction is falsified. If responses challenge the political framing without engaging the mechanism, the prediction is confirmed.

The prediction should not be misread as a claim that all critics will respond in the clergy mode. Some critics will engage the mechanism; their engagement is the scientifically productive interaction the paper seeks to generate. The prediction is specifically about the proportion of responses that take the conversion form rather than the evidentiary engagement form, and about the institutional resources that each form of response will be able to mobilize.

7. Heteronomous Bayesian Updating and the "Cover My Back" Culture

6.1 The HBU Mechanism Formalized

Heteronomous Bayesian Updating (HBU; Lerer, 2026f) describes the mechanism by which practitioners in institutional environments update their behavioral priors not by observing the outcomes of their decisions (did the complainant actually need protection? was the accused actually dangerous?) but by observing the reactions of institutional authority structures to specific decision patterns. Under HBU, the practitioner's belief-updating process is driven by authority observation rather than outcome observation, producing systematic divergence between optimal institutional behavior (the behavior that would maximize accurate case resolution) and practitioner behavior (the behavior that minimizes personal institutional risk).

The formal structure of HBU in this context can be stated as follows. Let $D(\text{positive})$ be the decision to apply precautionary measures in a given case, and $D(\text{negative})$ be the decision not to apply them. Let $O(\text{true positive})$ be the outcome in which the measure was necessary (the complainant was a genuine victim who needed protection) and $O(\text{false positive})$ be the outcome in which the measure was unnecessary (the complaint was tactical).

Under outcome-based updating (standard Bayesian updating from evidence), the practitioner's decision rule updates toward $D(\text{positive})$ when $O(\text{true positive})$ is observed and the precautionary measure proved necessary, and toward $D(\text{negative})$ when $O(\text{false positive})$ is observed and the measure proved unnecessary. Over time, with sufficient outcome data, the practitioner's decision rule converges on the base rate of genuine victimhood in the cases they encounter.

Under HBU, the practitioner's decision rule updates based on authority reactions rather than outcomes. The authority reaction to $D(\text{positive})$ with $O(\text{false positive})$ is: no institutional consequence, or mild criticism that carries no professional cost. The authority reaction to $D(\text{negative})$ with $O(\text{true positive})$ is: severe institutional consequences (disciplinary proceedings, media condemnation, potential criminal liability for the practitioner). The authority reaction to $D(\text{positive})$ with $O(\text{true positive})$ is: positive institutional reinforcement

(the measure worked; the practitioner is validated). The authority reaction to D(negative) with O(false positive) is: no institutional consequence, or approval for procedural rigor, but no amplified positive signal.

The asymmetry in authority reactions is extreme. The cost of a false negative (failure to protect a genuine victim) is borne almost entirely by the practitioner, through severe institutional consequences. The cost of a false positive (application of measures in a tactical filing) is borne entirely by the accused, through loss of home and children, and generates no institutional cost for the practitioner. Under HBU, the practitioner's rational response to this asymmetric authority signal is to minimize the probability of false negatives, accepting arbitrarily high false positive rates as institutionally costless. The resulting decision rule is: always apply precautionary measures when a complaint formally qualifies, regardless of contextual evidence about the complaint's authenticity.

6.2 The "Me Cubro Las Espaldas" Equilibrium

Soto Ivars (2025) reports practitioners describing their decision calculus in terms that are HBU-accurate: "me cubro las espaldas" (I cover my back). The description is not a confession of moral failure; it is an accurate articulation of rational behavior under the institutional incentive structure. The practitioner who says "me cubro las espaldas" is describing the HBU equilibrium: they have observed that false negatives are institutionally punished and false positives are institutionally invisible, and they have updated their decision rule accordingly.

The HBU equilibrium has a specific stability property that distinguishes it from standard rational ignorance. A practitioner operating under standard rational ignorance applies rules automatically because the cost of case-by-case assessment exceeds the expected benefit. Under HBU, the practitioner applies the rule automatically not because assessment is costly but because the authority signal structure makes accurate assessment personally disadvantageous: a practitioner who correctly identifies a tactical filing and does not apply precautionary measures has correctly performed their institutional function but has exposed themselves to severe institutional risk in the event they were wrong, with no compensating institutional reward for being right. The equilibrium is maintained not by ignorance but by rational response to perverse incentives.

6.3 HBU Across the Institutional Hierarchy

The HBU mechanism operates at every level of the institutional hierarchy simultaneously, and the signals reinforce each other in a self-sustaining feedback loop.

At the police officer level, the institutional signal is clear: failure to register a complaint as a gender violence complaint, or failure to inform the complainant of her rights under LO 1/2004 or Law 26.485, is a procedural violation that generates institutional consequences. Registering all qualifying complaints regardless of contextual credibility assessment generates no institutional consequence. The officer's HBU-optimal strategy is automatic registration.

At the prosecutor level, the institutional signal is similarly asymmetric. A prosecutor who declines to pursue a complaint that later leads to violence against the complainant is professionally ruined. A prosecutor who pursues a complaint that turns out to be tactical faces

no equivalent consequence: the acquittal is attributed to the defendant's lawyer or to evidentiary difficulties, not to the prosecutor's failure to screen for tactical filings. The prosecutor's HBU-optimal strategy is automatic prosecution of qualifying complaints.

At the judicial level, the institutional signal is most visible. The Acordada 11/2021 instructs judges to apply the gender perspective before and during evidence assessment. The disciplinary cases documented by Soto Ivars (2025) demonstrate that judges who deviate from this instruction face institutional consequences. The judge's HBU-optimal strategy is automatic application of precautionary measures and automatic application of the gender perspective as a prior that shapes evidence assessment.

The self-reinforcing character of the feedback loop is critical. Each level of the hierarchy observes the institutional signals produced by the other levels and updates accordingly. The police officer who registers all complaints creates the caseload that forces the prosecutor to pursue all cases. The prosecutor who pursues all cases creates the docket that forces the judge to apply measures automatically. The judge who applies measures automatically creates the institutional environment that signals to the police officer that all complaints should be registered. The loop is closed, stable, and self-reinforcing without any actor consciously intending the systemic outcome.

8. Displacement of Real Victims

7.1 The Crowding-Out Mechanism

The PSO mechanism predicts a consequence that is rarely foregrounded in either the policy debate or the empirical literature: when institutional capacity is saturated by parasitic filings, genuine victims are displaced. This is the cuckoo's most consequential third effect, more damaging than the direct resource transfer from host offspring to parasite: the host's offspring do not merely receive less provisioning than they need; the parasite's demands are so intense that the host's offspring die while the host continues feeding the parasite.

The crowding-out mechanism in institutional terms operates through three channels simultaneously.

The first channel is queue displacement. Institutional resources (court time, judicial attention, legal aid hours, shelter spaces, protective services capacity) are finite. Each case that occupies a unit of those resources is a unit unavailable to other cases. When the case load includes a growing proportion of tactical filings, genuine victims who need urgent attention are placed in queues lengthened by cases that do not share their urgency. The queue displacement is not directly observable to the victims experiencing it: they encounter a longer wait, a more fatigued practitioner, a less attentive process, without knowing that the system is saturated by a different category of case. The displacement is real but invisible.

The second channel is attention displacement. Legal and judicial attention is not only finite but qualitatively variable: a judge who has processed five tactical filings before lunch applies less careful evidential assessment to the sixth case than she would if the sixth case were her first. The attention displacement is a form of cognitive taxation: the parasitic equilibrium imposes a

cognitive burden on practitioners that falls disproportionately on the cases processed later in the cycle, which may be genuine cases requiring more careful attention.

The third channel is resource displacement. Shelters, legal aid, social services, and support programs financed to serve victims of gender violence are finite resources. When those resources are allocated to cases that turn out not to involve genuine victimhood, the resources are not recoverable: the legal aid has been spent, the shelter space has been occupied, the social worker's time has been consumed. The resources available for the next genuine case are correspondingly reduced.

7.2 The Argentine Data and the Displacement Hypothesis

The Argentine RNFJA records 228 direct femicides in 2024 and a rate of 0.95 per 100,000 women, with a historical range from 1.12 (2017) to 0.95 (2024) over the eight-year period for which data are available. The trend, if any, is slightly downward but not statistically distinguishable from flat given the year-to-year volatility (the series runs: 1.12, 1.21, 1.16, 1.08, 1.11, 1.07, 1.02, 0.95). Over the same period, Law 26.485 has been in operation for fifteen years, the OVD-CSJN has processed more than 164,000 complaints, and the institutional infrastructure of gender violence response has expanded continuously.

If the institutional expansion were operating as designed, directing protective resources primarily toward genuine cases involving high-risk intimate partner violence, one would expect the femicide rate to show a more clearly declining trend over fifteen years. The absence of a clear declining trend is consistent with the displacement hypothesis: the institutional expansion is absorbing resources, but a disproportionate fraction of those resources may be directed toward tactical filings in contentious family proceedings rather than toward the genuinely high-risk cases that determine lethal violence outcomes.

This interpretation requires explicit epistemic caution. Femicide rates are determined by multiple factors beyond institutional response: economic conditions, substance use patterns, social norms, prevalence of lethal weapons, and demographic factors all influence the rate. The absence of a declining trend does not confirm displacement; it is consistent with displacement while remaining consistent with other explanations. The causal identification of a displacement effect would require disaggregated data on institutional resource allocation by case context (tactical vs. non-tactical filings) that do not currently exist in any publicly available Argentine source. The displacement hypothesis is stated here as a prediction that would be confirmed by such data if they were produced, not as a conclusion from available data.

7.3 The Soto Ivars Documentation for Spain

Soto Ivars (2025) provides more direct evidence of the displacement mechanism for Spain, precisely because the Spanish institutional infrastructure is more developed and the data more accessible. He documents cases of women who sought institutional protection from genuine intimate partner violence and found a system in which their urgent cases were processed at the same pace as less urgent cases. He reports shelter directors who describe facilities occupied in significant part by women whose complaints are under judicial scrutiny for potential tactical character, with genuinely endangered women unable to access spaces. He documents legal aid

lawyers whose caseloads include substantial proportions of cases that their professional assessment identifies as tactical, consuming the same resources as cases involving genuine victimhood.

The displacement is documented at the individual case level. The systemic displacement, the aggregate effect on genuine victims of the institutional saturation by tactical cases, is not quantified in official Spanish statistics either: the Delegación del Gobierno para la Violencia de Género does not publish data on resource allocation by case authenticity. The systemic displacement is inferred from the documented individual displacement cases and from the structural logic of the PSO mechanism, not from aggregate official data.

9. Comparative Analysis: Constitutional Architecture and Reform Pathways

8.1 Shared Architectural Features

Both LO 1/2004 and Law 26.485 share the four architectural features that AIT predicts will generate failure. They both provide automatic precautionary measures at a low evidentiary threshold, designed to protect genuine victims from the requirement of producing proof before accessing emergency protection. They both encode intentionality attributions that are fixed by legislative design rather than assessed per case, as detailed in Section 3. They both generate epistemological clergy structures, through the mechanisms analyzed in Section 5, that convert empirical challenge into moral accusation. And they both create HBU environments, analyzed in Section 6, that reward automatic application and penalize contextual assessment, producing practitioner behavior systematically divergent from accurate case resolution.

These shared features produce the shared failure pattern: compliance theater (practitioners apply the framework automatically without genuine assessment of individual cases), displacement of genuine victims (institutional capacity is saturated by tactical filings, reducing resources available for high-risk cases), and clergy-enforced lock-in (empirical evidence of the failure pattern is converted into moral accusation rather than triggering institutional revision).

8.2 Constitutional Divergence and Its Implications

The cases diverge in a dimension that is significant for the reform analysis: their constitutional architectures offer different tools and constraints for addressing the failure pattern.

Spain. The Constitutional Court's STC 59/2008 upheld LO 1/2004's asymmetric criminalization against equality challenges under Article 14 of the Spanish Constitution. The reasoning treated the structural framing of gender violence as a constitutionally valid basis for differentiated treatment. This ruling does not preclude reform within the existing framework, but it constrains the reform options significantly: a challenge to the automatic precautionary measure architecture on equality grounds faces the same constitutional barrier that the broader asymmetric criminalization challenge failed to overcome. Reform pathways in Spain therefore require working within the framing of LO 1/2004 rather than against it, introducing contextual assessment mechanisms that the law does not currently require without challenging the constitutional validity of the law's structural premises.

Argentina. Argentina's constitutional architecture offers more tools for structural reform, for three reasons that the EPT programme has identified in other contexts (Lerer, 2026c). First, the principle of equality before the law in Article 16 of the National Constitution has been interpreted by Argentine courts to require not only formal equality but substantive equality of treatment, which includes the right of the accused not to be presumed guilty of structural domination intentions without individual-level evidence. Second, the due process guarantee of Article 18, combined with the Pacto de San José de Costa Rica's presumption of innocence (incorporated at constitutional hierarchy by Article 75(22) of the 1994 Constitution), provides a basis for challenging automatic precautionary measure application without individual evidentiary assessment. Third, the objective liability framework of Articles 1757-1758 of the Civil and Commercial Code provides a civil remedy for harm caused by judicial false positives, without requiring structural reform of the criminal protective framework.

The Argentine constitutional architecture is therefore more compatible with an outcome-control reform approach: rather than replacing the automatic precautionary measure architecture with a process-control alternative that requires prior verification before granting protection, the reform would preserve the automatic architecture for genuine cases while creating liability for false positives and measurement systems that track the rate of false positives. This is the same outcome-control logic the EPT programme has argued for in AI governance (Lerer, 2026c): do not regulate the process, regulate the result; attach liability to harmful outcomes rather than requiring prior certification of process integrity.

8.3 The Evidentiary Asymmetry Between Cases

The cases also diverge in the quality of available evidence, a divergence that is itself theoretically significant.

For Spain, Soto Ivars (2025) provides detailed, documented, first-hand evidence of the failure mechanisms: practitioner testimony, case records, institutional responses, and the specific methodological choices in official statistics that produce the artificially low tactical filing estimates. The evidence base allows the AIT analysis to be grounded in specific documented instances rather than predicted from structural logic alone.

For Argentina, the evidence base is significantly thinner. The RUCVM data end in 2018. No official disaggregated outcome statistics exist. The academic literature on tactical filings in Argentina is sparse and methodologically weak. The anecdotal evidence from legal practitioners is available (lawyers and judges acknowledge the phenomenon in informal contexts) but is not systematically documented.

This asymmetry is itself predicted by the EPT framework. The Spanish case is more advanced in the trajectory of the parasitic equilibrium: it has had fifteen years longer than Argentina to accumulate the institutional infrastructure and discourse structure that the PSO and clergy mechanisms predict. The measurement system has had fifteen years longer to be calibrated toward producing invisibility of the failure pattern. Paradoxically, the longer time horizon allows Soto Ivars to document what the institutional machinery has been working to make invisible.

The Argentine case is earlier in the trajectory, which means that the failure pattern is less fully developed and less fully documented, but also that the window for institutional revision before full lock-in may be longer. The constitutional tools identified above are still available and have not yet been defeated by equivalent constitutional rulings to Spain's STC 59/2008.

8.4 The Institutional Lock-in Risk

The Constitutional Lock-in Index (CLI) framework developed in this programme (Lerer, 2026h) provides a metric for assessing the reversibility of institutional arrangements. The CLI measures four dimensions: path dependency (how much does the current arrangement depend on prior institutional choices that would need to be reversed to change the arrangement?), organizational depth (how many organizations have built their existence and funding around the current arrangement?), override complexity (how many procedural and political obstacles must be overcome to change the arrangement?), and epistemic entrenchment (how thoroughly have the premises of the current arrangement been internalized as foundational by the practitioner community?).

On all four dimensions, the gender violence protection framework in both Spain and Argentina scores high and increasing. Path dependency: the precautionary measure architecture is embedded in criminal procedure codes that were amended specifically to accommodate LO 1/2004 and its Argentine equivalent, requiring equivalent legislative action to reverse. Organizational depth: the ecosystem of NGOs, government agencies, legal aid services, shelters, and academic centers that built their existence around the framework is substantial and growing. Override complexity: any legislative modification faces constitutional constraints (in Spain) and CEDAW/human rights treaty obligations (in both jurisdictions) that require careful navigation. Epistemic entrenchment: the generational transmission mechanism analyzed in Section 5 has been operating for fifteen and twenty years respectively, producing a practitioner cohort for whom the framework's premises are pre-theoretical commitments.

The lock-in risk is not yet irreversible in either jurisdiction. But the trajectory of all four CLI dimensions is increasing, not decreasing: each year of operation increases path dependency, organizational depth, override complexity, and epistemic entrenchment. The reform window is not infinite.

10. What Reform Looks Like Within AIT Logic

The EPT framework does not argue that gender violence protection laws should be repealed, weakened, or that the institutional infrastructure built around them is illegitimate. It argues that the architectural feature that generates failure is the fixed intentionality attribution, not the protective intent.

A reform consistent with AIT logic would preserve the protective intent while replacing the fixed attribution with a contextual assessment that tracks the AIT-relevant features of each case. Specifically:

Protection frameworks that provide automatic precautionary measures at low evidentiary thresholds are appropriate for cases where the evidence pattern is consistent with genuine

victimhood in a Level 3 context: ongoing cohabitation, documented escalation, isolation from support networks, prior incidents, asymmetric physical capacity. These features are observable and do not require fixing the intentionality attribution; they provide the contextual evidence base on which a contextual assessment can operate.

Protection frameworks that apply the same automatic measures to cases where the filing context is inconsistent with that pattern, specifically filings made in temporal proximity to contentious divorce or custody proceedings without prior documented incident, are applying the Level 3 attribution fictitiously. AIT does not predict that all such cases are false; it predicts that the automatic application to such cases without contextual assessment produces systematic false positives.

The mandatory "gender perspective" interpretive criterion is compatible with this reform: it requires judges to assess evidence with awareness of the structural asymmetries that may affect how evidence presents in genuine violence cases. It is incompatible with the reform if it is applied to disable contextual assessment entirely, converting a probabilistic interpretive aid into a categorical epistemological prior.

The reform also requires a measurement system that can distinguish outcomes by case context. The absence of such a system is not a neutral gap; it is a design feature that protects the current architecture from empirical accountability.

11. Falsifiable Predictions

Prediction 1. Complaints filed in temporal proximity to contentious divorce or custody proceedings (operationalized as within 90 days of filing for divorce, modification of custody, or contentious allocation of shared property) will show acquittal or dismissal rates materially higher than the overall complaint-to-conviction ratio for the same jurisdictions and time periods. This prediction is falsifiable against disaggregated judicial statistics that are currently not published in either Spain or Argentina. It is confirmed if the acquittal/dismissal differential exceeds 20 percentage points; it is falsified if the rates are equivalent.

Prediction 2. Jurisdictions that implement contextual assessment protocols (differentiated evidentiary standards based on case context, rather than uniform automatic precautionary measures) will show better outcomes on two dimensions simultaneously: lower acquittal/dismissal rates in prosecuted cases (indicating more accurate case selection) and higher lethality intervention rates (indicating reallocation of resources from low-risk tactical cases to high-risk genuine victimhood cases). This prediction is falsifiable against comparative data from jurisdictions that have implemented such protocols, if any exist.

Prediction 3. The intensity of epistemological clergy response to this paper's argument will be inversely correlated with engagement with its evidentiary content: critics will challenge the framing (this paper denies gender violence) rather than the mechanism (demonstrate that the AIT attribution mismatch does not predict the documented outcomes). This prediction is about the discourse structure, not about the policy; it is falsifiable if critics engage primarily with the empirical claims and the methodology rather than with the political positioning.

12. Limitations

Three limitations are material.

First, the evidentiary base for the Argentine case is thinner than for the Spanish case. The RUCVM data end in 2018. No official disaggregated outcome statistics exist. The argument for Argentina is largely predictive: the architecture is similar, so the failure modes should be similar. It would be falsified by Argentine disaggregated data showing outcomes inconsistent with the AIT predictions.

Second, the EPT framework explains institutional persistence and failure mode prediction. It does not explain why some jurisdictions develop these architectures and others do not, nor why some reform while others entrench. A full account requires integration with the CLI/IHR metrics developed elsewhere in the programme (Lerer, 2026h), which is deferred to future work.

Third, the political sensitivity of the domain creates asymmetric evidentiary risks. Evidence of genuine gender violence is well-documented and well-publicized. Evidence of tactical filings is systematically underdocumented (by the measurement design features the PSO predicts) and systematically challenged as politically motivated when it surfaces. The paper acknowledges this asymmetry explicitly and does not claim that the available evidence on tactical filings is representative of the total frequency of the phenomenon. It claims only that the available evidence is consistent with the AIT predictions, and that the evidentiary gaps themselves are predicted by the PSO and clergy mechanisms.

13. Conclusion

The same mechanism that generates compliance theater in corporate criminal law, greenwashing in environmental regulation, regulatory theater in AI governance, and sycophancy in AI systems generates predictable failure in asymmetric gender protection legislation. The mechanism is the Dennett-Nash Gap: the distance between the intentionality level a legal framework attributes to its subjects and the intentionality level at which those subjects actually operate under the specific conditions the framework creates.

Laws designed to protect can systematically harm the populations they target. The harm does not require bad faith, conspiracy, or ideological capture. It requires only the combination of three features that the EPT programme has identified across multiple domains: a fixed intentionality attribution that departs from actual operating modes; a benefit structure exploitable by actors who operate at Level 1 in the relevant context; and an epistemological clergy that converts evidence of the failure into moral accusation rather than policy revision.

Both LO 1/2004 and Law 26.485 exhibit all three features. The reform does not require abandoning protective intent. It requires replacing fixed intentionality attribution with contextual assessment, creating the measurement systems that would make false positive rates visible, and removing the epistemic closure mechanisms that prevent empirical accountability.

Juan Soto Ivars provided the phenomenological raw material for the Spanish case. The causal mechanism that explains what he documented is what the EPT programme was designed to identify.

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